

Andhra Pradesh Panchayat Raj Employees Transfers (Regulation of Transfer) Rules, 2000

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State of Andhra Pradesh - Act

Andhra Pradesh Panchayat Raj Employees Transfers (Regulation of Transfer) Rules, 2000

ANDHRA PRADESH

India

Andhra Pradesh Panchayat Raj Employees Transfers (Regulation of Transfer) Rules, 2000

Rule

ANDHRA-PRADESH-PANCHAYAT-RAJ-EMPLOYEES-TRANSFERS-REGULATION-OF-TRANSFER-RULES-2000 of 2000

Published on 5 February 2000

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Andhra Pradesh Panchayat Raj Employees Transfers (Regulation of Transfer) Rules, 2000

Published vide Notification No. G.O. Ms. No. 45. Panchayat Raj & Rural Development (Estt.VI), dated 5.2.2000

Last Updated 27th August, 2019

No. G.O. Ms. No. 45. - In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India read with sub-section (1) of Sec. 268, sub-section (4) of Section 169 and subsection (4) of Section 195 of the Andhra Pradesh Panchayat Raj Act, 1994 (Act

No. 13 of 1994

), and in Supersession of existing orders on the subject, the Governor of Andhra Pradesh hereby makes the following Rules.

1.

These Rules shall be called the "Andhra Pradesh Panchayat Raj Employees Transfers (Regulation of Transfer) Rules, 2000".

(a)

These Rules will come into force with immediate effect.

2.

There shall be a State Level committee for counselling headed by the Minister (PR & RD) with the Commissioner of Panchayat Raj and Rural Employment as Member and the Secretary to Government (Panchayat Raj), as Member-Convenor for the following posts: -

(1)

Chief Executive Officer, Zilla Parishad.

(2)

Deputy Chief Executive Officer, Zilla Parishad.

(3)

District Panchayat Officer.

(4)

Chief Accounts Officer.

(5)

Accounts Officer, Zilla Parishad.

3.

Government are the transferring authority in respect of the above categories.

4.

There shall be a committee headed by the Commissioner of Panchayat Raj & Rural Employment consisting of Deputy Secretary/ Joint Secretary/Additional Secretary dealing with the subject and District Head of the relevant wing for consideration of transfers through counselling in respect of the following categories:-

(i)

Divisional Panchayat Officers.

(ii)

Mandal Parishad Development Officers.

(iii)

Extension Officers (Panchayats)

(iv)

Extension Officers (Rural Development).

(v)

Superintendents of District Panchayat Officer's Offices, and

(vi)

Executive Officers of Gram Panchayats.

5.

The Commissioner of Panchayat Raj & Rural Employment is the transferring authority in respect of the above categories.

6.

There shall be the District Level Committee headed by the Chairperson, Zilla Parishad with the Chief Executive Officer/ Deputy Chief Executive Officer as Member in Open Session, shall be the authority competent to consider and transfer all categories of Panchayat Raj Employees in respect of Zilla Parishads and Mandal Parishads except those mentioned in paras 2 and 3 above. The Chief Executive Officer/ Deputy Chief Executive Officer, shall be the convenor.

7.

Similarly there shall be a District Level Committee consisting of District Collector or his nominee as Chairman and the District Panchayat Officer as Member shall be competent to transfer all categories of employees working under the control of District Panchayat Officer except those mentioned in paras 2 and 3 above. The District Panchayat Officer shall

be the convenor of the committee headed by the District Collector or his nominee.

8.

A Mandal Level Committee consisting of the Mandal Parishad Development Officer under the Chairmanship of Mandal President in open session, shall be the authority competent to transfer all categories of Panchayat Raj Employees in respect of Mandal Parishads. Mandal Development Officer shall be the convenor of the Committee.

9.

The following guidelines shall be adopted for transfers by the Committees.

(i)

No officer shall be retained at any one place beyond a period of (5) years.

(ii)

No officer shall be transferred from a place against his will when he is having only one year of service to retire, as far as possible.

(iii)

Mutual transfers shall be considered to the places other than their previous stations or respective native places.

(iv)

If the spouse of the officer is also a Government Employee, their transfers shall be considered to same places or neighbouring places as far as possible.

(v)

No employee shall be considered for transfer on mere allegations either oral or written unless the allegations are proved prima facie (or) believed to be true through discrete enquiries.

(vi)

Since the posts of Extension Officers (Panchayats), Divisional Panchayat Officers, Mandal Parishad Development Officers are gazetted and executive in nature, their posting shall be governed according to General Rules.

(vii)

The transfers shall be considered only during May or June or during the period when the ban, if any, is lifted by Government.

(viii)

Transfer however shall be effected at any time during the year on disciplinary grounds or otherwise purely in public interest.

(ix)

No officer can have the benefit or mutual transfer for more than two times in his/her entire service or for five years, whichever is less.

(x)

No officer from a particular place shall be transferred or disturbed normally within a period of three years except on ground of disciplinary action, promotion and other circumstances, if any, covered by these rules.

(xi)

Each Officer who worked in the interior Tribal areas/remote villages shall be given preference, while considering the transfer.

(xii)

Data bank shall be erected in respect of each officer showing the dates of appointment and stations where he worked from time to time, together with disciplinary proceedings instituted if any, for consideration at the time of transfer.

(xiii)

Vacancy position of the posts shall be maintained at Commissioner of Panchayat Raj & Rural Employment Office/District Offices/Mandal Offices by obtaining reports from time to time.

(xiv)

Suitable Annual Evaluation Reports, shall be devised to evaluate the work and performance of each officer in his Mandal/Division by taking into account the targets and achievements in key performance areas as per the performance evaluation sheet in Annexure enclosed to this order.

(xv)

To effect transfers through counselling, a standard request application shall be devised separately. The officers who seek request transfer shall submit the same.

(xvi)

The Officers who attend the Counselling shall be called in as per their service seniority and their place of request shall be given preference to effect their transfer, keeping in view his performance evaluation report and other available material.

(xvii)

When an employee reports back to duty after availing leave, they shall be posted back to same place, as far as possible.

10.

The Commissioner of Panchayat Raj & Rural Employment/Chief Executive Officer/District Panchayat Officer/Mandal Parishad Development Officer, shall ensure that the above stated provisions are observed while effecting transfers and they will be personally held responsible, if there is any deviation.

11.

The provisions of these Rules shall apply not with standing anything contained in any of the rules of instructions in respect of matters covered by these rules.

A. Performance evaluation (Self)

1. Inspections Conducted:

Year

No. of Institutions under the Jurisdiction

(Target)

No. Inspected

No. of I.N. issued

Rating

I.N.; - Inspection Notes

{|

On

From

100%

9 Marks

75%

7 Marks

50%

5 Marks

50%

3 Marks

NIL

0 Marks

|}

2. Collection of Taxes:

Year

Demand (Cur/Arr)

Collection (Cur/Arr)

Percentage

Tax Collection Rating

{|

90%

10 Marks

75-90%

7 Marks

50-75%

5 Marks

30-50%

3 Marks

30%

2 Marks

l}

3. Utilization of Grants:

Year

Name of the Scheme

Grant released

Grant Utilized

Percentage

Grant Utilization Rating

{l

100%

10 Marks

80%

7 Marks

50-80%

5 Marks

l}

4. Settlement of Audit Objection (AC/LF):

Year (s) of A.R.

Audit AG/LF

No. of A.Rs Pending

No. of Paras Pending

Settled

No. of A.Rs.

No. of Paras

A.Rs.: - Annual Reports

Objections Settled Rating

{l

Rating

A

B

C

D

l}

5. Recovery of Mis-appropriations/S.Cs. amount:

No. of Cases Pending (Mis-appropriation/

S.Cs/Excess Payments

Amount Involved

Amount recovered

S.C.: - Surcharge

Recovery S.C. /Misappropriation Rating

{l

Rating

A

B

C

D

l}

6. Attention to Court Cases:

Year

No. of Cases filed by Parties

No. of counters filed

No. of cases finally decided

Courts Cases Rating

{|

Rating

A

B

C

D

|}

7. People Interface:

Description

Reviewed

Disposed

1. Grievances

2. Public Complaints

3. Visitors Complaints

People Interface Rating

{|

Rating

A

B

C

D

|}

8. Period worked in Agency Areas/in hospitable climate (in entire service):

Place

of Posting

Period

Rating

{|

Rating

A

>10 Years

10 Marks

B

7-10 Years

8 Marks

C

5-7 Years

5 Marks

D

< 5 Years

3 Marks

|}

B. Performance Evaluation (Head Office):-

1. Knowledge of Procedure:

01 Knowledge

of Department

02 Knowledge

of Section

03 Knowledge

of PR Act 7 Rules

04

Departmental Procedure

2. Accuracy:

01 Assignments completed

02 With

acceptable Accuracy

03 Completed

on time

3. Timeliness:

01 Ability to prioritize duties

02 Completed

within time

4. Responsibility:

01 Initiative

02

Punctuality

03 Attendance

5. Team Work:

01 Co-operation with colleagues

02

Participating in departmental tasks

{|

Rating

Exceptional

A

Superior

B

Effective

C

Unacceptable

D

Not Applicable

E

|}

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